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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

CASE MANAGEMENT STATEMENT

(CRC 3.722–3.730)

Dept.: 610

Date: July 8, 2026

PRELIMINARY NOTE: PENDING JUNE 24, 2026 RULINGS

Plaintiff respectfully notes for the Court's information that as of the date this statement is filed, several dispositive-level rulings are pending in this case before Department 302, the Honorable Joseph M. Quinn. The June 24, 2026, 9:00 a.m., Dept. 302 consolidated hearing will address: (a) Defendant's Anti-SLAPP motion (seqs 015 to 018); (b) Defendant's Demurrer (seqs 019 to 023); (c) Defendant's Motion to Strike pursuant to CCP section 436 (seqs 041 to 044); (d) Plaintiff's Motion for Leave to File Third Amended Complaint (TX 79334688); (e) Plaintiff's Motion to Strike May 6, 2026 Reply Declaration of Tyler J. O'Connell (TX 79429443); (f) Plaintiff's Motion to Strike Defendant's May 8, 2026 Second Reply Papers (re TX 79430135); (g) Plaintiff's CCP section 128.7 Sanctions Motion (filed May 21, 2026); (h) Plaintiff's CCP section 425.16(g) Specified-Discovery Motion (filed May 21, 2026); and (i) Plaintiff's CCP section 1008(b) Renewed Motion for Leave to File Third Amended Complaint (filed May 21, 2026). The June 24,

2026 rulings may significantly affect the scope of the surviving claims, the trial estimate, and the posture of this case for ADR purposes.

Plaintiff accordingly reserves the right to file a supplemental Case Management Statement or addendum after the June 24, 2026 hearing, addressing any material change in case posture resulting from those rulings. The trial estimate, discovery status, and ADR posture in this statement are submitted based on the current state of the pleadings (First Amended Complaint vs. proposed Third Amended Complaint).

Plaintiff will update the Court at the July 8, 2026 CMC regarding the outcome of the pending rulings.

1. PARTY OR PARTIES (ANSWER ONE):

[X] a. This statement is submitted by party (name): Franciscus Dylan Rosario, Plaintiff

2. COMPLAINT AND CROSS-COMPLAINT

a. The complaint was filed on (date): December 23, 2025 The First Amended Complaint was filed on (date): February 25, 2026 The Third Amended Complaint (proposed; motion for leave pending): Filed April 28, 2026 (MFL TAC, TX 79334688; consolidated for hearing June 24, 2026, Dept. 302)

b. The cross-complaint, if any, was filed on (date): N/A

3. SERVICE

[X] a. All parties named in the complaint and cross-complaint have been served, have appeared, or have been dismissed.

4. DESCRIPTION OF CASE

a. Type of case in complaint: Fraud; Bad Faith; Violations of Insurance Code

[X] b. (If more space is needed, check this box and attach a page designated as Attachment 4b.)

See Attachment 4b (incorporated by reference from the prior CMC statement filed in connection with this matter and updated to note the pending rulings identified in the Preliminary Note).

5. JURY OR NONJURY TRIAL

[X] The party or parties request a jury trial. Party requesting jury trial: Franciscus Dylan Rosario, Plaintiff

6. TRIAL DATE

a. The trial has been set for (date): [X] b. No trial date has been set. This case will be ready for trial within 12 months of the date of the filing of the complaint (if not, explain): Plaintiff is prepared for trial. The pending Anti-SLAPP, Demurrer, and related motions do not stay trial readiness. Plaintiff will be prepared for trial on the surviving claims within 12 months of the filing of the complaint, subject to the discovery schedule established after resolution of the CCP section 425.16(g) stay.

Post-June 24, 2026 Update: If the Anti-SLAPP motion is denied and the Demurrer is overruled (in whole or in part), Plaintiff anticipates that discovery will proceed promptly and that the case can be ready for trial within the 12-month window. If the Anti-SLAPP motion is granted, Plaintiff will assess the surviving claims and update the trial estimate accordingly.

c. Dates on which parties or attorneys will not be available for trial (specify dates and explain reasons for unavailability): Plaintiff: None known at this time.

7. ESTIMATED LENGTH OF TRIAL

[X] a. days (specify number): 5 to 7 (estimate may be revised after June 24, 2026 rulings; see Preliminary Note)

Defendant's Case Management Statement (filed May 1, 2026) estimates 1 day. Plaintiff respectfully disagrees. The claims in the FAC involve fraud, bad faith, and Insurance Code violations against a licensed California insurer; they involve documentary evidence, multiple witnesses, expert testimony on insurance claims handling practices, and cross-examination of defense declarants whose declarations have been the subject of Plaintiff's pending motions and evidentiary objections. A 1-day estimate does not reflect the actual complexity of this matter.

8. TRIAL REPRESENTATION

The party or parties will be represented at trial [X] by the party listed in the caption.

1 **9. PREFERENCE**

2 [] This case is entitled to preference (specify code section):

3 **10. ALTERNATIVE DISPUTE RESOLUTION (ADR)**

4 a. ADR information package.

5 (2) For self-represented parties: Party [X] has reviewed the ADR information package identified
6 in rule 3.221.

7 b. Referral to judicial arbitration or civil action mediation (if available).

8 (3) This case is exempt from judicial arbitration under rule 3.811 of the California Rules of
9 Court (specify exemption): Amount in controversy exceeds the statutory limit for judicial
10 arbitration.

11 c. ADR processes:

12 (1) Mediation: [X] The party completing this form is willing to participate. Mediation session
13 not yet scheduled. Plaintiff notes that ADR posture will be clearer after the June 24, 2026
14 rulings. Plaintiff reserves the right to supplement the ADR section of this statement after the
15 June 24, 2026 hearing.

16 **11. INSURANCE**

17 a. Insurance carrier, if any, for party filing this statement (name): N/A

18 b. Reservation of rights: N/A

19 c. Coverage issues will significantly affect resolution of this case.

20 **12. JURISDICTION**

21 [] Bankruptcy [] Other Status: No jurisdictional issues.

22 **13. RELATED CASES, CONSOLIDATION, AND COORDINATION**

23 [X] a. There are companion, underlying, or related cases. (1) Name of case: Rosario v. Abdelhalim
24 et al. (2) Name of court: San Francisco County Superior Court (3) Case number: CGC-25-631801
25 (4) Status: Pending; Anti-SLAPP, Demurrer, and Motion to Strike adjudicated by the May 12,
26 2026 anti-SLAPP order; CMC also continued to July 8, 2026.

27 [X] Additional cases are described in Attachment 13a.

See Attachment 13a (incorporated by reference from prior CMC statement, with updated status for CGC-25-631801).

[] b. A motion to consolidate [] coordinate will be filed by (name party):

Note: The matters within this case (CGC-25-631802) have been consolidated for hearing on June 24, 2026 by court order entered following the parties' stipulation; that intra-case consolidation is reflected in the Preliminary Note.

14. BIFURCATION

The party or parties do not intend to file a motion for bifurcation at this time.

15. OTHER MOTIONS

[X] The party or parties expect to file the following motion before trial (specify moving party, type of motion, and issues):

Motions Filed and Pending (as of May 21, 2026; all Dept. 302 motions before Hon. Joseph M. Quinn):

Filed	Moving Party	Motion	Hearing Date	Dept.	Status
Apr 9, 2026	Defendant CSAA	Special Motion to Strike (Anti-SLAPP), CCP 425.16	June 24, 2026 (consolidated)	302	Pending
Apr 13, 2026	Defendant CSAA	Demurrer to First Amended Complaint	June 24, 2026 (consolidated)	302	Pending

Filed	Moving Party	Motion	Hearing Date	Dept.	Status
Apr 22, 2026	Defendant CSAA	Motion to Strike, CCP 436	June 24, 2026 (consolidated)	302	Pending
Apr 28, 2026	Plaintiff	Motion for Leave to File Third Amended Complaint	June 24, 2026 (consolidated)	302	Pending
May 8, 2026	Plaintiff	Motion to Strike May 6 Reply Decl of Tyler J. O'Connell	June 24, 2026 (consolidated)	302	Pending
May 12, 2026	Plaintiff	Motion to Strike Defendant's May 8 Second Reply Papers (TX 79430135)	June 24, 2026 (consolidated)	302	Pending

Filed	Moving Party	Motion	Hearing Date	Dept.	Status
May 21, 2026	Plaintiff	CCP section 128.7 Sanctions Motion (Anti-SLAPP reply misconduct)	June 24, 2026	302	Pending
May 21, 2026	Plaintiff	CCP section 425.16(g) Specified-Discovery Motion	June 24, 2026	302	Pending
May 21, 2026	Plaintiff	CCP section 1008(b) Renewed Motion for Leave to File Third Amended Complaint	June 24, 2026	302	Pending

Anticipated Motions:

- Defendant (per its CMS filed May 1, 2026): MSJ/MSA “should the pleadings survive”; mo-

tion to declare Plaintiff a vexatious litigant (neither CCP section 391(b) nor any governing standard supports this anticipated motion for the reasons stated in Attachment 18 of Plaintiff's prior CMC statement)

- Plaintiff: Set Six default motions (conditional, if defense defaults by June 9, 2026); additional discovery motions as necessary after CCP section 425.16(g) stay lifts

Defendant Has Never Filed an Answer. All defense filings to date are procedural challenges to the pleading structure. Defendant has not stated a factual position on the merits of Plaintiff's fraud, bad faith, or Insurance Code claims.

16. DISCOVERY

- b. The following discovery will be completed by the date specified: ☒ c. The following discovery issues, including issues regarding the discovery of electronically stored information, are anticipated (specify):

Discovery is currently stayed under CCP section 425.16(g) pending resolution of the Anti-SLAPP motion. Set Six discovery (RFP Set Six, Special Interrogatories Set Six, RFA Set Six, Form Interrogatory 17.1 Set Six) was served May 5, 2026. Defense response deadline (assuming stay does not apply to Set Six) is June 9, 2026. Plaintiff has filed a CCP section 425.16(g) specified-discovery motion (May 21, 2026) and a Notice of Filed Default in Discovery Responses (Set Six) to address these issues at the June 24, 2026 hearing.

Upon resolution of the Anti-SLAPP motion, Plaintiff anticipates an active discovery phase involving: CSAA claims file production; 30(b)(6) depositions of CSAA representatives with knowledge of the claims handling and the February 25, 2021 denial; expert discovery on insurance claims handling standards and UCL liability; and additional document subpoenas to third parties.

17. ECONOMIC LITIGATION

☐ N/A (Unlimited case)

18. OTHER ISSUES

☒ The party or parties request that the following additional matters be considered or determined at the case management conference (specify):

1 See Attachment 18 from prior CMC statement (incorporated by reference). The following addi-
2 tional matters are presented for the July 8, 2026 CMC:

3 (A) **Post-June 24, 2026 Ruling Update.** Plaintiff will provide the Court with an oral update
4 on the outcomes of the June 24, 2026 consolidated hearing and its impact on the surviving
5 claims, the discovery schedule, and the trial estimate.

6 (B) **Defendant's Answer Deadline.** If the Demurrer and Motion to Strike are denied in whole or
7 in part, Plaintiff requests the Court set a date certain for Defendant to file an Answer, or face
8 default under CCP section 585.

9 (C) **Set Six Discovery Status.** Plaintiff will report on the status of Set Six responses and any
10 pending default motions.

11 (D) **Trial Setting.** Plaintiff requests that the Court address trial setting at the July 8, 2026 CMC,
12 consistent with the 12-month trial readiness standard.

13 **19. MEET AND CONFER**

14 [X] a. The party or parties have met and conferred with all parties on all subjects required by rule
15 3.724 of the California Rules of Court (if not, explain):

16 Plaintiff has met or commenced meet-and-confer consistent with CRC 3.724 and 3.727 with De-
17 fense counsel. Parties do not agree on disputed scheduling and discovery subjects. See Attachment
18 19 from prior CMC statement (incorporated by reference, with the additional note that the meet-
19 and-confer record as of May 21, 2026 reflects continued disagreement on discovery stay scope,
20 TAC filing, and trial estimate).

21 **20. TOTAL NUMBER OF PAGES ATTACHED (IF ANY): 13 (FROM** 22 **PRIOR STATEMENT, INCORPORATED BY REFERENCE; UPDATED** 23 **AS NOTED ABOVE)**

24 _____
25 I am completely familiar with this case and will be fully prepared to discuss the status of discov-
26 ery and alternative dispute resolution, as well as other issues raised by this statement, and will
27 possess the authority to enter into stipulations on these issues at the time of the case management

conference, including the written authority of the party where required.

Date: May 21, 2026 (early-file; CMC Statement service deadline June 23, 2026 per CRC 3.725(a))
Franciscus Dylan Rosario _____ (TYPE OR PRINT NAME) (SIGNATURE
OF PARTY)

SUPPLEMENTAL SECTION: POST-JUNE 24, 2026 CASE POSTURE ADDENDUM

To be completed and filed as a supplemental CMC statement or addendum after the June 24, 2026 hearing, if the posture changes materially. Plaintiff reserves the right to supplement this Case Management Statement by filing a one-to-two page addendum within 10 days of the June 24, 2026 ruling, before the June 23, 2026 service deadline for the CMC statement (or by oral update at the July 8, 2026 CMC if the addendum cannot be served timely).

At the June 24, 2026 hearing, the Court is expected to rule on:

1. Defendant's Anti-SLAPP motion (CCP section 425.16): If denied, the CCP section 425.16(g) discovery stay lifts immediately upon notice of entry of order.
2. Defendant's Demurrer to the FAC: Ruling may affect claim scope, amendment rights, and TAC proceedings.
3. Defendant's CCP section 436 Motion to Strike: Ruling may affect claim scope.
4. Plaintiff's MFL TAC and CCP section 1008(b) Renewed MFL TAC: Ruling determines operative pleading.
5. Plaintiff's Motion to Strike May 6, 2026 O'Connell Reply Declaration: Ruling goes to evidentiary record.
6. Plaintiff's Motion to Strike Defendant's May 8, 2026 Second Reply Papers: Ruling goes to procedural record.
7. Plaintiff's CCP section 128.7 Sanctions Motion: Ruling addresses Anti-SLAPP reply misconduct.
8. Plaintiff's CCP section 425.16(g) Specified-Discovery Motion: Ruling determines discovery scope while the Anti-SLAPP stay is in effect.

1 Each ruling will affect the discovery timeline, the trial estimate, and the ADR posture. Plaintiff
2 will supplement this CMC statement promptly after the June 24, 2026 ruling.
3

Note: This refreshed CM-110 was prepared May 21, 2026 for the July 8, 2026 CMC at 10:30 a.m.,
Department 610, before the Honorable Rochelle East. It supersedes the prior refresh dated May
12, 2026 to reflect the consolidated June 24, 2026 hearing in Department 302 and the additional
motions filed May 21, 2026. All Attachment content from the prior CMC statement is incorporated
by reference.

Dated: May 25, 2026



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DECLARATION OF COMPLIANCE WITH CALIFORNIA CODES, RULES, AND LOCAL PROCEDURES

Plaintiff declares under penalty of perjury under the laws of the State of California (Code Civ. Proc., § 2015.5) that the statements below are true and correct for this case management statement.

#	Authority	Specific requirement	This filing's compliance	Evidence
1	CRC 3.722	CM-110 form used	Judicial Council form CM-110	Form body
2	CRC 3.725	Filing deadline before CMC	Filed before July 8, 2026 CMC	Filing date
3	CRC 3.725(a)	Service of CM-110	POS-050 filed concurrently	POS-050 path